

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING ORDINANCE NO. 3951 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR NON-UNIFORMED EMPLOYEES OF THE CITY OF CHEYENNE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. DEFINITIONS.

CITY EMPLOYEE/EMPLOYEES. Employee or employees as used in this ordinance means civilian City employees, but does not include the sworn personnel of the Cheyenne Police Department below the rank of chief or the sworn personnel of the Cheyenne Fire Department below the rank of chief.

Section 2. APPLICABILITY.

These terms and conditions of employment apply to all City employees.

Section 3. PURPOSE.

The purpose of this ordinance is to define the terms and conditions of employment for City employees. In areas of conflict between this ordinance and established federal, state or local laws, the latter shall govern. This ordinance comprises the exclusive statement of City employee terms and conditions of employment. Any other agreement with or representation made to any employee by a supervisor, agent or officer of the City of Cheyenne which is in conflict with or in addition to this ordinance is specifically disclaimed by the City of Cheyenne, except for agreements entered into by and between supervisory personnel and employees establishing specific job expectations, requirements or discipline which are part of the employee's official personnel file maintained by the Human Resources Department.

Section 4. COMPENSATION.

The compensation paid to City employees is set out in the pay plan schedule, which is attached as Exhibit A and incorporated by reference herein. The compensation appropriate for employees will be computed with reference to the grade of the individual employee. The governing body reserves the right, in its sole discretion, to modify or change pay scales. Effective July 1, 2008, City employees will receive, in addition to basic pay, longevity pay as set forth in Exhibit B, attached hereto and incorporated by reference herein. Longevity raises will be effective on the employee's anniversary month. An individual who is recalled to City employment within two (2) years after having been subjected to a reduction in force (RIF) will be paid longevity based on total months of service, regardless of whether the months of service are consecutive. EACH FULL-TIME CITY EMPLOYEE SHALL IN ADDITION RECEIVE A TWO AND ONE QUARTER PERCENT (2.25%) INCREASE IN PAY AND THE CITY SHALL INCREASE ITS CONTRIBUTION TO THE WYOMING STATE RETIREMENT SYSTEM FOR EACH FULL-TIME EMPLOYEE BY ONE HALF OF A PERCENT (.5%).

Effective July 1, 2004, for any employee called to active military duty, the City of Cheyenne will compensate the difference between the employee's City base pay and military base pay, provided the military base pay is lower than the city base pay. Base pay is defined as the regular pay the employee would have received from the City had they not been called to active military duty.

Section 5. CONTINUATION OF EMPLOYMENT.

Any employee covered by this ordinance who continues their term of employment during and beyond the term of this ordinance shall be entitled to advancement in pay, if the mayor and council approve funds to pay the increases.

Section 6. HEALTH, MEDICAL, DENTAL AND LIFE INSURANCE.

The City will negotiate with or seek bids from qualified health insurance providers and will enter into a contract with a qualified carrier or carriers to provide City employees with a medical insurance plan, which is on file in the Human Resources Department, for fiscal year ~~2012-2013~~ 2013-2014. Each non-uniformed full-time City employee (including members of the Governing Body) who elects to participate in, and satisfies the participation requirements of the City's Wellness Works Program, shall contribute twelve and one-half percent (12.5%) of the monthly health insurance premium attributable to the level of coverage selected by that employee. Each non-uniformed full-time City employee (including members of the Governing Body) who declines to participate in, or fails to satisfy the participation requirements of the City's Wellness Works Program, shall pay twenty-five percent (25%) of the monthly health insurance premium attributable to the level of coverage selected by that employee. In the event the Wellness Works Program is terminated for any reason during the term of this ordinance, each non-uniformed full-time City employee (including members of the Governing Body) shall contribute twelve and one-half percent (12.5%) of the monthly health insurance premium attributable to the level of coverage selected by that employee. This payment will be a payroll deduction.

The City will maintain dental insurance on City employees pursuant to the dental plan on file in the Human Resources Department. The City will pay premiums for employees. If an employee wishes to maintain dental insurance under this plan on immediate family members, he/she may do so by paying the premium for the additional person(s) insured.

The City will pay premiums for term life insurance on all employees in accordance with the term life insurance plan on file in the Human Resources Department and City Clerk's Office.

Section . TERM.

The terms and conditions of employment set forth in this ordinance shall apply for fiscal year ~~2012-2013~~ 2013-2014 and shall be approved as part of the budget process. This ordinance will terminate at the beginning of fiscal year ~~2013-2014~~ 2014-2015.

Section 8. REPEAL OF OTHER ORDINANCES.

All other ordinances establishing specific terms and conditions of employment are repealed.

Section 9. SEVERABILITY.

If any clause, sentence, paragraph or part of this ordinance or application to any person or circumstance shall for any reason be adjudged by a court of competent jurisdiction to be invalid such judgment shall not affect, impair or invalidate the remainder of this agreement.

Section 10. This ordinance shall be in full force and effect upon passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk